

		parties to this action and there is no evidence they have agreed to accept service of pleadings electronically. Personal service is required. (CA ST CIVIL RULES Rule 3.1346; Civ. Proc. Code § 2020.220.) There is no evidence Plaintiff met and conferred with counsel for defendant Hong Shune, M.D. ("Shune") regarding the modifications prior to filing the Motion. For the above reasons the Motion is denied without prejudice to meeting and conferring with defense counsel, re-filing the motion with proper exhibits, and properly serving all interested parties/entities. The court also notes Plaintiff, who is apparently an attorney, requests monetary sanctions on the Motion. An attorney who represents themselves propria persona cannot recover their attorney fees, including as sanctions. (<i>Trope v. Katz</i> (1995) 11 Cal. 4th 274, 292; <i>Musaelian v. Adams</i> (2009) 45 Cal. 4th 512, 520.) Plaintiff is ordered to give notice.
3	Smith vs. Kia America, Inc.	Defendant Kia America, Inc.'s ("Defendant") Motion for Terminating Sanctions ("Motion") against plaintiff Wayne D. Smith ("Plaintiff") is GRANTED. After Plaintiff failed to appear at multiple properly noticed deposition dates, the court ordered Plaintiff to appear for deposition no later than 6/04/26 and imposed a \$2,000 monetary sanction. (ROA 136.) Despite Defendant's best efforts and multiple additional attempts to depose Plaintiff, Plaintiff failed and/or refused to appear for the court ordered deposition. Defendant requests terminating sanctions, or in the alternative, issue and evidentiary sanctions, as well as additional monetary sanctions against Plaintiff and his counsel of record. Although discovery sanctions are typically meted out sparingly or in an incremental approach (<i>Dep't of Forestry & Fire Prot. v. Howell</i> (2017) 18 Cal. App. 5th 154, 191-92), the court has considered the totality of the circumstances in this instance and finds the actions of Plaintiff appear to be willful, to the detriment of Defendant, and that multiple informal attempts to resolve the issues were not successful due to Plaintiff's failure and/or refusal to participate. (<i>Los Defensores, Inc. v. Gomez</i> (2014) 223 Cal. App. 4th 377, 390.) Moreover, prior monetary sanctions did not dissuade Plaintiff from additional discovery abuses. And issue and evidentiary sections are appropriate where the discovery violated goes to a particular issue in the case. But here, Plaintiff's deposition is an essential discovery device that goes to all issues. Thus, the court finds the request for terminating sanctions to be appropriate here. Plaintiff's counsel requests a brief continuance of this motion for compliance, suggesting that the difficulty in obtaining Plaintiff's deposition has been merely technical.

		But at the agreed upon deposition set for July 22--well after the compliance date set in Judge De La Cruz's order--Plaintiff still did not appear. Counsel explains "[o]ur records reflect that counsel attempted to call Plaintiff [and] left a voicemail" The attempts to contact Plaintiff at the deposition were mentioned in the nonappearance transcript on July 22, where defense counsel noted: "Off the record plaintiff's counsel advised she had attempted to contact plaintiff on at least two different numbers but was unable to reach him." RT 4:22-25. Although older persons might have difficulty with Zoom, telephones have been around for 150 years and despite technological changes in dialing numbers, they are simple to operate. That Plaintiff did not call his counsel to report a difficulty connecting to Zoom on July 22 or even answer his counsel's calls suggests something more sinister is afoot. Indeed, Plaintiff's counsel declares: "Despite repeated communications, warnings, scheduling efforts, and the proposed technological assistance, Plaintiff has persistently been unable to appear for and complete his deposition. [¶] "The repeated inability to communicate effectively with Plaintiff, coordinate his participation, and ensure compliance with his discovery obligations has caused an irreparable breakdown in the attorney-client relationship. [¶] Because of that irreparable breakdown in the attorney-client relationship, Plaintiff's counsel anticipates filing a motion to be relieved as counsel." Wong Decl. at ¶¶16, 17, 18. In other words, Plaintiff's counsel has given up trying to get his client to appear for deposition. The Court also gives up and will not continue the motion for compliance. Action is DISMISSED with prejudice. The court also issues additional monetary sanctions against Plaintiff in the sum of \$1,500 to be paid within 14 days of written notice of the ruling. Defendant is ordered to give notice of the ruling and submit a proposed judgment with proof of service within 15 days..
4	Alofs vs. Volkswagen A.G.	Defendant Volkswagen A.G.'s ("Defendant") Motion to Quash Service of Summons ("Motion") is GRANTED. Defendant argues it is a foreign corporation with no contacts within California or the United States. California courts may exercise jurisdiction over nonresidents "on any basis not inconsistent with the Constitution of this state or of the United States." (Code Civ. Proc., § 410.10.) The statute "manifests an intent to exercise the broadest possible jurisdiction, limited only by constitutional considerations." [Citation.]" (<i>DVI, Inc. v. Superior Ct.</i> (2002) 104 Cal. App. 4th 1080, 1089 ("<i>DVI</i>").) "The federal Constitution permits a state to exercise jurisdiction over a